

MOLDOVA 2017 HUMAN RIGHTS REPORT

Note: Unless otherwise noted, all references in this report exclude the secessionist region of Transnistria.

EXECUTIVE SUMMARY

Moldova is a republic with a form of parliamentary democracy. The constitution provides for a multiparty democracy with legislative and executive branches as well as an independent judiciary and a clear separation of powers. Legislative authority is vested in the unicameral parliament. The 2014 parliamentary elections met most Organization for Security and Cooperation in Europe (OSCE), Council of Europe, and other international commitments, although local and international observers raised concerns about the inclusion and exclusion of specific political parties. During the year political migration and party switching amid allegations of political pressure and bribery significantly reshaped parliament's structure and the parliamentary majority. In March 2016 the Constitutional Court ruled unconstitutional an amendment that empowered parliament to elect the president and reinstated presidential elections by direct and secret popular vote. Two rounds of presidential elections in 2016 resulted in the election of Igor Dodon. According to the OSCE election observation mission, both rounds were competitive and respected fundamental freedoms. International and domestic observers, however, noted polarized and unbalanced media coverage, harsh and intolerant rhetoric, lack of transparency in campaign financing, and instances of abuse of administrative resources.

Civilian authorities maintained effective control over the security forces.

The most significant human rights issues included torture at prisons and psycho-neurological institutions; harsh prison conditions; arbitrary arrest or detention; denial of fair public trial; restrictions on freedom of the media, especially in Transnistria; corruption; cases of forced abortion; rape and other violence against persons with disabilities in institutions; and trafficking in persons.

While authorities investigated reports of official abuse in the security services and elsewhere, they rarely successfully prosecuted and punished officials accused of human rights violations, complicity in trafficking, or corruption. Selective prosecution of officials for political reasons continued. The investigation into the disappearance of over \$1 billion from the national banking system led to a limited number of arrests and convictions of current and former high-level officials.

Impunity remained a major problem. Authorities detained an unprecedented number of high-level officials on corruption and influence-peddling charges during the year.

In 1990 separatists declared a “Transdnister Moldovan Republic” (Transnistria) along the border with Ukraine. A 1992 ceasefire agreement established a peacekeeping force of Moldovan, Russian, and Transnistrian units. The central government did not exercise authority in the region, and Transnistrian authorities governed through parallel administrative structures. Transnistrian authorities allegedly interfered with political and voting activities in both the 2014 parliamentary and 2016 presidential elections. There were regular reports that police engaged in torture, arbitrary arrests, unlawful detentions, and pressure on Latin-script schools.

Section 1. Respect for the Integrity of the Person, Including Freedom from:

a. Arbitrary Deprivation of Life and Other Unlawful or Politically Motivated Killings

There were no reports that the government or its agents committed arbitrary or unlawful killings during the year.

The government made no progress in holding officials accountable for the security force crackdown on postelection demonstrations in 2009 that resulted in three deaths (see section 1.d.).

b. Disappearance

There were no reports of politically motivated disappearances.

c. Torture and Other Cruel, Inhuman, or Degrading Treatment or Punishment

While the law prohibits such practices, reports continued of physical abuse and torture, mainly in detention facilities and psychiatric institutions. Cases of mistreatment in police stations and torture cases in detention facilities decreased due to a zero-tolerance policy, social campaigns promoted in law enforcement institutions and detention facilities, and more thorough monitoring by relevant international organizations and civil society. According to the human rights organization Promo-Lex, of the over 600 complaints of torture and inhuman and

degrading treatment yearly received by the Prosecutor General's Office, criminal proceedings were initiated in only 20 percent of the cases.

Under the criminal code, conviction for torture carries up to a 10-year prison sentence. Persons found guilty of torturing minors, pregnant women, or persons with disabilities or of committing acts of torture that lead to death or suicide may be sentenced to up to 15 years in prison without the possibility of amnesty. A deliberate act by a public official that leads to physical or psychological suffering is punishable by imprisonment for two to six years or a fine of 57,500 to 67,500 lei (\$2,875 to \$3,375) and a ban on holding public office. The law prohibits courts from granting suspended sentences to persons convicted of torture. A law on the rehabilitation of crime victims adopted in 2016 entered into force in March. Under the law, victims of torture and inhuman and degrading treatment receive free state legal aid, strengthening the procedural guarantees offered to them.

During the first half of the year, the Prosecutor General's Office received 320 allegations of torture and mistreatment, 112 of which involved criminal police, 78 traffic police, 21 employees of the penitentiary system, and 56 other police units, including the Carabinieri (a special police force responsible for public order and infrastructure security) and customs officers. Prosecutors initiated 45 criminal cases and sent 15 cases to court. In most cases, police applied violence during detention as a means of intimidation or discrimination, to obtain evidence and confessions, and to punish alleged offenses. Most of the alleged incidents occurred on the street or in public places, followed by police stations and detention facilities. Military units registered nine cases of alleged torture, while psychiatric institutions registered three cases, and educational facilities registered eight. Most incidents involved beatings (168 allegations), followed by other methods, such as beatings using batons, water bottles, and books (89 allegations), threats or other forms of psychological abuse (33 allegations), and inhuman detention conditions (10 allegations). Despite a decrease in torture cases, psychological torture and humiliating treatment continued to be a problem in penitentiaries and psychiatric institutions. An independent assessment by local human rights nongovernmental organizations (NGOs) determined that the decrease in torture cases was due to harsher penalties introduced into the criminal code, which served as a deterrent; more robust awareness-raising campaigns and training organized for prosecutors, judges, and police; and video surveillance equipment placed in police stations and detention facilities.

The human rights ombudsman reported that most allegations of torture and sub-standard detention conditions occurred at Penitentiary No. 13 in Chisinau,

Penitentiary No. 11 in Balti, and Penitentiary No. 17 in Rezina. The ombudsman's national anti-torture mechanism resumed its activity following the enactment of the new Law on the People's Ombudsman adopted in 2016. During the first six months of the year, members of the national anti-torture mechanism made 14 preventative visits to prisons, pretrial detention facilities, psychiatric institutions, and psycho-neurological homes. Most of their observations concerned poor detention conditions, which in some cases contributed to inhuman and degrading treatment of inmates.

Despite a decrease in alleged torture cases, human rights experts noted that the number of cases was likely higher than reported due to individuals not reporting abuses because they lacked trust in the justice sector.

On August 26, Andrei Braguta was found dead at Penitentiary No.16 while held in pretrial detention. Prison authorities claimed Braguta died of pneumonia; however, following pressure from human rights experts, the media, and civil society, prosecutors initiated an investigation; forensic analysis indicated Braguta was beaten while in pretrial detention, directly leading to his death. According to preliminary information, while in detention, several inmates beat Braguta with the tacit approval of the prison guards, who ignored his pleas for help and medical assistance. The Prosecutor General's Office detained five persons, including three police officers, on charges of torture, investigated an additional 10 officers suspected of mistreating detainees, and sued 13 police officers. Braguta was arrested August 15 for speeding, resisting arrest, and insulting police officers. He was then transferred several times between pretrial detention and the psychiatric ward. Braguta had been diagnosed with schizophrenia and was under psychiatric monitoring since 2012.

Investigation of degrading treatment of patients in psycho-neurological institutions was deficient. In most cases, prosecutors refused to investigate complaints submitted by patients, questioning the accuracy of allegations made by persons with mental disabilities. According to the NGO Promo-Lex, most prosecutors and investigators lacked technical skills to investigate acts of violence or torture in psychiatric institutions. Another problem was the lack of a regulatory framework for the psychological assessment of victims of torture and inhuman or degrading treatment in psychiatric institutions.

According to the Moldovan Institute for Human Rights, residents of residential psychiatric facilities and psycho-neurological institutions were subject to rape, physical abuse, deprivation of liberty, and forced medication.

Legal proceedings continued in the case of a doctor at an institution in Balti arrested in 2013 for the serial rape, sexual assault, and abuse of patients. An investigation showed that the doctor performed 18 forced abortions on the victims of his sexual assaults, all patients with mental disabilities. In 2014 authorities found one of the 17 victims identified during the investigations dead; a second died under unknown circumstances that same year. The doctor remained under house arrest during the trial proceedings. In 2016 a court found the doctor guilty of numerous counts of rape and sentenced him to 13 years in prison. The defendant appealed the ruling and the case was pending at the Balti Court of Appeal at year's end.

According to a report by the human rights NGO Promo-Lex, there was no mechanism to investigate alleged acts of torture in Transnistria. There were no criminal cases initiated for “providing statements under coercion by means of violence, humiliation, or torture” since the Transnistrian “investigation committee” was established in 2012. Promo-Lex noted that authorities perpetrated most inhuman and degrading treatment in the Transnistrian region in order to obtain self-incriminating confessions. Promo-Lex continued to receive complaints from alleged victims of torture and inhuman or degrading treatment by Transnistrian security forces.

Hazing and humiliating treatment in the de facto Transnistrian army continued during the year.

Prison and Detention Center Conditions

Conditions in most prisons and detention centers, including those in Transnistria, remained harsh and did not improve significantly.

Physical Conditions: Prisons and detention centers were overcrowded. Human rights NGOs noted a significant increase in arrests and a failure to apply alternative noncustodial measures, which increased overcrowding of detention facilities to a rate of 40 percent. As of January 9, the total number of prisoners and pretrial detainees was 7,656, with 5,550 inmates in prisons and 2,106 individuals in pretrial detention centers. The official maximum capacity was 6,274 inmates for prisons and 2,380 for pretrial detention centers, but human rights monitors asserted that the official maximum capacity exceeded required standards. The obsolete infrastructure in most prisons did not allow for a separation of prisoners according to minimum required standards, which led to continued violence among inmates.

During the year members of the antitorture section of the ombudsman's office jointly with the newly created Council for Prevention of Torture conducted 51 preventive visits to 11 prisons, 32 pretrial detention facilities, four psychiatric institutions, three psycho-neurological homes, and to National Anticorruption Center. The main deficiencies found included overcrowding of prisons and detention facilities, insufficient lighting, poor sanitary conditions, failure to separate minor detainees from adults, insufficient food, deficient medical care for detainees, insufficient rooms for meetings with lawyers, and a lack of accessibility for persons with disabilities.

Penitentiary No.13 in Chisinau had the worst conditions. A number of high-profile detainees held in the penitentiary complained of detention in basement cells that did not meet national or international standards. In three cases during the year, the European Court of Human Rights (ECHR) found that detention conditions in Penitentiary No. 13 were contrary to the European Convention on Human Rights. Cells were overcrowded (in some cells, up to 16 inmates were placed in an area measuring 258 square feet), unhygienic (toilets separated from the sleeping area by only a curtain; mold and dirt on the walls), and lacked ventilation, natural light, or permanent access to water for personal hygiene. Despite numerous calls from the ombudsman and international organizations to close the Penitentiary due to inhuman detention conditions, the authorities reported they were not able to find an alternative detention facility due to financial constraints.

During its 2015 visit, the Council of Europe's Committee for the Prevention of Torture (CPT) noted that living space frequently failed to meet the national standard of at least 43 square feet per prisoner in most of the prisons it visited. In particular, the level of overcrowding at the Chisinau and Soroca prisons reached disturbing proportions. The detention conditions in the two prisons were inadequate, with very poor states of repair and hygiene, limited access to natural light, insalubrious sanitary facilities, infestation by vermin, and worn-out and filthy mattresses, which the CPT considered inhuman and degrading treatment. The CPT also found that the prison administration made insufficient contributions to the purchase of medication and that facilities often relied on humanitarian aid and support from the inmates' families.

The ombudsman noted that "the situation in police station detention facilities did not change during the year and was alarming". The office reported inadequate conditions for food distribution; inadequate sanitary conditions in the showers; inadequate health-care facilities; and a lack of pillows, mattresses, and clean bed

linen and clothing. Detention facilities, located mostly in the basements of police stations, generally lacked access to natural light, adequate ventilation, and sewage systems. Inmates had a daily food budget of approximately 20 lei (one dollar). Human rights NGOs also noted facility staff did not provide pretrial detainees meals on the days of their court hearings--a potentially severe problem for detainees transported long distances to stand trial, which in some cases meant they received no food for a day. Transportation conditions for pretrial detainees were also deficient.

Health care was inadequate at most penitentiaries. Government regulations require authorities to separate individuals suspected of suffering from tuberculosis from the other detainees. Authorities often co-located individuals with various other diseases with persons with an unconfirmed diagnosis of tuberculosis, potentially exposing them to infection. Penitentiaries lacked appropriate facilities for persons with disabilities, which led to inhuman and degrading treatment.

Police mistreatment of detainees remained a major problem in Transnistria. Detention conditions in the region did not improve. The report of the Transnistrian ombudsmen noted a decrease in the number of complaints received from detainees in 2016 compared with 2015, although there were no independent reports confirming this finding.

Administration: Internal investigation procedures in the penitentiary system remained weak, and detainees continued to have restricted access to complaint mechanisms. While detainees generally had the right to submit complaints to judicial authorities, some detainees reported censorship and punishment by prison personnel or other inmates before or after filing complaints.

Prisoners in the initial period of their sentences and those serving life sentences did not have the right to long-term visits. Detainees and their relatives reported a burdensome process for obtaining visit permits, which often impeded such visits. Lawyers reported continued restrictions on access to clients in Penitentiary No. 13 due to artificially imposed barriers. Authorities reportedly applied random quarantine checks on and access restrictions to the families and attorneys of persons detained in connection with high-profile bank fraud cases.

Reliable information on the administration of prisons in the Transnistria region was generally not available. Transnistrian authorities reported approximately 3,000 persons were detained in the region.

Independent Monitoring: The government permitted some independent monitoring of prison conditions by local and international human rights observers, and prison officials generally allowed observers to interview inmates in private. Attempts by Amnesty International, the ombudsman, and human rights NGOs to visit detainees held in connection with the country's bank fraud case were frequently unsuccessful.

There were no reports of any independent monitoring of detention facilities in the Transnistrian region during the year.

d. Arbitrary Arrest or Detention

The constitution and law prohibit arbitrary arrest and detention and provides for the right of any person to challenge the lawfulness of his/her arrest or detention in court, but authorities sometimes failed to respect these requirements.

According to Promo-Lex reports, police routinely detained persons sought by unrecognized Transnistrian authorities and transferred them to Transnistrian law enforcement agencies without due process. The country's courts previously ruled the 1999 agreement establishing such cooperation to be unconstitutional, but the practice continued informally.

In Transnistria, authorities reportedly engaged in the arbitrary arrest and detention of individuals with impunity. There were cases of Transnistrian authorities detaining individuals on fabricated charges without due process.

Role of the Police and Security Apparatus

The national police force is the primary law enforcement body and is responsible for internal security, public order, traffic, migration, and border enforcement. It is subdivided into criminal and public order police and is subordinate to the Ministry of Internal Affairs. The agencies under the ministry are the General Police Inspectorate, Border Police, the Civil Protection Service, Carabinieri, and the Bureau for Migration and Asylum. The ministry made modest progress in implementing reforms to combat abuse and corruption.

A 2016 law reformed the structure of the Prosecutor General's Office and governs the activity of two specialized prosecution offices: the anticorruption prosecution office and the prosecutor's office on combatting organized crime and special cases (e.g., terrorism and torture). In line with the new law, parliament changed the

process for appointing the prosecutor general: the Superior Council of Prosecutors nominates candidates for prosecutor general and the president appoints one of the candidates to a single seven-year mandate. Previously, parliament had this appointment authority.

The government made no progress in holding officials accountable for the security force crackdown on postelection demonstrations in 2009 that resulted in three deaths. In April the Prosecutor General's Office presented statistics on cases related to the 2009 riots. Prosecutors opened 71 criminal cases, including 42 for alleged torture, 19 for abuse of power, and 10 for other offenses. The Prosecutor General's Office finalized and sent to court 28 cases against 47 police officers. As of July, the judges issued irreversible decisions in 19 cases against 30 law enforcement employees. The courts acquitted 14 police officers, issued two administrative fines, 10 suspended sentences, and two imprisonment sentences against three police officers. Eleven criminal cases against 20 law enforcement employees were still pending in courts.

Arrest Procedures and Treatment of Detainees

The law allows judges to issue arrest warrants based on evidence from prosecutors. Authorities must promptly inform detainees of the reasons for their arrest and describe the charges against them. Authorities may detain suspects without charge for 72 hours. In its 2016-17 study on procedural guarantees in the pretrial stage of the criminal process, Amnesty International found serious violations of procedural norms during police apprehension and pretrial detention. According to the study, in most cases authorities summoned persons to the police station without a citation or took them into police custody without informing them of the charges against them. In many cases, authorities forced or intimidated detained individuals into providing confessions in the absence of a lawyer. In some cases, questioning in police custody exceeded the legally allowed three hours. Other violations included purposeful altering of protocols, detention in police custody that exceeded legal time limits, and denial of the right to a lawyer or communication with relatives.

Once charged, a detainee may be released pending trial. The law provides for bail, but authorities generally did not use it due to a lack of practical mechanisms for implementation. In lieu of confinement, the courts can also implement judicial controls in the form of house arrest or travel restrictions. The law provides safeguards against arbitrary use of pretrial detention and requires noncustodial alternatives wherever possible.

Detainees have the right to a defense attorney, but at times authorities restricted this right. In some cases, authorities did not grant detainees access to a lawyer until 24 hours after detention. The government required the local bar association to provide representation to indigent defendants, but the government frequently delayed reimbursements of legal fees. Indigent defendants often did not have adequate counsel.

Pretrial Detention: The law permits pretrial detention for up to 30 days. The courts may extend pretrial detention upon the request of prosecutors, submitted at the end of each 30-day period, for up to 12 months, depending on the severity of the charges. Pretrial detention lasting several months was common. In 2016 the Constitutional Court ruled that law enforcement agencies could not hold citizens in preventative detention for more than 30 days with a warrant or for more than 12 months cumulatively. The court also ruled that court decisions imposing 90 days of preventative arrest at a time were illegal.

Detainee's Ability to Challenge Lawfulness of Detention before a Court: The law provides that persons who are arrested or detained are entitled to challenge the legal basis or arbitrary nature of their detention in court and obtain prompt release and compensation if found to have been unlawfully detained. Authorities sometimes failed to respect these provisions.

e. Denial of Fair Public Trial

While the law provides for an independent judiciary, instances of government officials failing to respect judicial independence remained a problem. Official pressure on judges and corruption in the justice sector continued to be serious problems. There were credible reports that local prosecutors and judges sought bribes in return for reducing charges or sentences. Judges sometimes failed to assign cases randomly or use recording equipment in the courtroom, as required by law. Very few courtrooms, however, actually used such equipment.

Selective justice was a growing problem. According to the 2016-17 Amnesty International report on the country, the case against the so-called Petrenco group (see "Political Prisoners and Detainees" below) and a number of other criminal prosecutions prompted concerns about political influence over the justice sector. The 2016 closed-door trial of former prime minister Vlad Filat, sentenced to nine years' imprisonment for passive corruption and influence peddling in connection to the 2014 bank fraud, raised questions about the impartiality of the prosecutor's

office and judiciary. Filat's lawyers claimed there were a number of procedural violations during the trial proceedings.

According to the 2016 study *Perceptions on Human Rights in Moldova* conducted by the United Nations in partnership with the ombudsman's office and the Council to Prevent and Eliminate Discrimination and Ensure Equality, 68 percent of general public respondents believed that the right to a fair trial existed to a small extent or not at all. Many of the respondents also believed that justice was selective and affected by corruption.

During the year the public and the press did not have access to court proceedings in several high-profile cases involving a former prime minister, present and former government and city officials, and bank officials. Lawyers complained of violations of defendants' rights to a fair public trial. In his opening statement at the 36th session of the UN Human Rights Council in September, UN human rights commissioner Zeid Ra'ad Al Hussein voiced concern over the country's prosecution and harassment of lawyers representing opposition figures, human rights defenders, and journalists. According to the commissioner, reprisals against NGOs, the removal of a judge, and arrests of public officials on allegedly fabricated charges also raised concerns.

Inspector judges are responsible for enforcing a judicial code of ethics and investigating cases of judicial misconduct or ethical breaches. They report to the Superior Council of Magistrates. In 2016 the disciplinary board of the council initiated 86 disciplinary actions and applied 13 sanctions, including six reprimands and seven warnings. Despite a significant increase in disciplinary actions following reform of the council disciplinary board, most alleged violations were dismissed.

Limitations on access to data for much of the year on the single courts national portal developed by the Ministry of Justice's Agency for Court Administration caused discontent among media representatives and NGOs. Civil society and journalists complained that, because there was no search option, they could not find the names of those involved in court cases, nor could they determine who adjudicated or prosecuted the case.

In July appeals court judge Domnica Manole was dismissed by a presidential decree following a Superior Council of Magistrates decision declaring her unfit to serve, based upon an advisory opinion by the Security and Intelligence Service (SIS). Legal experts asserted that removal of a judge based upon a SIS opinion

was illegal and a signal to judges that, if they opposed the government, they could be excluded from the judiciary. On December 5, the Constitutional Court ruled the dismissal of a judge based on an SIS opinion unconstitutional, but at year's end the Supreme Court of Justice had not ruled on Manole's reinstatement. In 2016 Manole faced criminal prosecution on charges of issuing an illegal ruling. She had overturned a Central Electoral Commission decision to block a referendum to amend the constitution. Legal experts criticized the case against her because it was solely based on her decision later being overturned by a higher court rather than any direct evidence of corruption. The Supreme Court of Justice denied Manole's appeal and allowed the criminal case against her to continue.

Trial Procedures

Although the law presumes the innocence of defendants in criminal cases, authorities did not always respect this presumption. On occasion, judges' remarks jeopardized the presumption of innocence.

Defendants have the right to be informed promptly and in detail of the charges against them and to a fair and public trial without undue delay. Prosecutors present cases to a judge or panel of judges. Defendants have the right to a lawyer and to attend proceedings, confront witnesses, and present evidence. The law requires the government to provide an attorney to indigent defendants. The practice of appointing temporary defense lawyers without allowing them to prepare adequately was common and undermined the right to legal assistance.

The law prescribes high standards for free legal aid attorneys and defendants' access to attorneys. Law enforcement, however, did not always enforce these provisions. In most cases, free legal aid-provided attorneys were poorly prepared and not motivated to work on cases. Defendants can request postponement of a hearing if attorneys need additional time for preparation. Interpretation is provided upon request and was generally available. Hearings can be delayed if more time is needed to find interpreters for certain uncommon languages. Defendants may refuse to provide evidence against themselves, unless they plead guilty and their guilty plea is reviewed and endorsed by a judge.

The law provides a right to appeal convictions to a higher court on matter of facts and law.

In Transnistria, there were credible reports that authorities disregarded trial procedures and denied defendants a fair trial.

Political Prisoners and Detainees

On June 28, the Riscani court found Grigore Petrenco, leader of the opposition Our Home Moldova Party, and five other activists guilty of organizing and leading mass disorder accompanied by violence. The court fined the defendants and issued them suspended sentences ranging from three to four-and-a-half years. The defendants declared the ruling was illegal and politically motivated because the court had qualified participation in peaceful antigovernment protests in 2015 as mass disorder. The group appealed the ruling at the Court of Appeals and remained under judicial control at year's end. Amnesty International Moldova stated the court ruling was biased, violated the right to a free trial, freedom of peaceful assembly, and freedom of association.

Civil Judicial Procedures and Remedies

The law allows citizens to seek damages in civil courts for human rights violations. Under the constitution, the government is liable when authorities violate a person's rights by administrative means, fail to reply in a timely manner to an application for relief, or commit misconduct during a prosecution. Judgments awarded in such cases were often small and not enforced. Once all domestic avenues for legal remedy are exhausted, individuals may appeal cases involving the government's alleged violation of rights provided under the European Convention on Human Rights to the ECHR. Citizens who have exhausted all available domestic remedies may also submit a written communication to the UN Human Rights Committee.

While the government declared a zero-tolerance policy toward torture, victims of alleged torture frequently lacked access to effective civil judicial remedies, especially in cases involving mistreatment in penal institutions.

A mediation law establishes an alternative mechanism for voluntarily resolving civil and criminal cases and sets forth rules for professional mediators, but the country lacked an implementation mechanism.

At the beginning of the year, there were 1,283 cases pending against the country in the ECHR. In 2016 the court delivered 23 judgments against the state and ordered the government to pay over 187,407 euros (\$225,000) in damages. The government generally complied with ECHR orders promptly. The number of complaints submitted to the ECHR decreased in comparison to previous years.

Property Restitution

The country endorsed the Terezin Declaration in 2009 and the Guidelines and Best Practices in 2010. Although the law provides for restitution of property confiscated during the successive fascist and Soviet regimes to politically repressed or exiled persons, it does not apply to property confiscated from minority groups. The government has not enacted any laws concerning restitution of communal property.

In September the Supreme Court of Justice ruled in favor of the Jewish community in dismissing an appeal by the Agency of Public Property and upholding a Court of Appeals decision which rejected the Agency's claim on the Rabbi Tsirilson Synagogue and Magen David Yeshiva ruins, both purchased by the Jewish community in 2010.

f. Arbitrary or Unlawful Interference with Privacy, Family, Home, or Correspondence

The constitution prohibits arbitrary interference with privacy, family, home or correspondence unless necessary to ensure state security, economic welfare or public order, or to prevent crimes. There were no reports that the government failed to respect these prohibitions.

Section 2. Respect for Civil Liberties, Including:

a. Freedom of Expression, Including for the Press

While the law provides for freedom of expression, including for the press, authorities did not always respect this right. A Freedom House report on freedom of media released during the year placed the county in the “partially free” category.

Pressure on independent media continued during the year, and a number of investigative journalists reported being intimidated and harassed after publishing investigative articles on political figures.

Freedom House scored media freedom in the Transnistrian region as “not free.”

Freedom of Expression: According to the 2016 Freedom House *Nations in Transit* report, strident politicization and “oligarchization” of the media remained key

problems for the country. Political interests in parliament dictated the appointments of members of the Audiovisual Coordinating Council (ACC).

In its report on freedom of expression in the Transnistrian region in 2016, Promo-Lex asserted that the right to free expression remained one of the rights most frequently violated in the region. A 2016 decree on fighting terrorism restricted freedom of expression in Transnistria, allowing the Transnistrian “KGB,” “prosecutors,” and the region’s “office for telecommunications” to shut down websites found to be suspicious, i.e., they promoted a number of “forbidden topics,” such as extremism or terrorism, or issued calls to overthrow the government. Local authorities restricted online forums without explanation. The Transnistrian leader referred to them as “anonymous dump sites” and insisted that all social media networks register as mass media institutions to allow for monitoring and restrictions if they became too critical of the government.

Press and Media Freedom: The law prohibits editing and publishing of literature that contains “denial and defamation of the state and the people; calls for war or aggression; appeals to ethnic, racial, or religious hatred; [or] incites discrimination, territorial separatism, or public violence.”

While the print media expressed diverse political views and commentary, oligarch-controlled business groups that distorted information for their benefit controlled most of the country’s media, albeit with some notable exceptions. Information about the owners of private broadcasters, made public in 2015, confirmed the high concentration of media ownership. The government, political parties, and political figures also owned or subsidized a number of newspapers that expressed clearly defined political views. The government owned the Moldpress News Agency, and local and city governments subsidized approximately 23 newspapers and generally influenced their reporting. Large media outlets associated with leaders of political factions or oligarchs exerted pressure on smaller outlets, which brought several to the brink of closing and prompted prominent journalists to leave key outlets acquired by oligarchs. These oligarchs closely supervised content and maintained editorial control over reporting from the outlets they owned.

Amendments to the audiovisual code in 2016 limit to two the number of media outlets that one person may own. The amendments do not take effect, however, until existing licenses expire, thereby limiting the law’s effectiveness in addressing the problem of media monopolies. Following the adoption of the amendments, media experts stated that the essential problem had not been resolved because

media owners who had more than two outlets reregistered them under the names of individuals close to them.

On March 30, parliament approved amendments to the audiovisual code to promote local content during prime time hours, requiring each television channel to produce eight hours of local programming daily, of which six must be aired in prime time. Some broadcasters and media experts voiced concerns that the amendments could increase the concentration of the media market and eliminate smaller channels that cannot afford to produce local content. Local media also faced the obstacle of unfair competition in advertising markets, which limited their access to advertising revenue.

In May a monitoring report presented by the Independent Press Association showed that Russian channels rebroadcast in the country disseminated propaganda and presented distorted information about regional and international events.

In December parliament passed amendments to the audiovisual code only allowing the re-broadcast of news and programs with political, analytical, and military content originating from the United States, Canada, EU members, and states that have ratified the European Convention on Transfrontier Television.

Two organizations controlled the Transnistrian mass media market: The “Public Agency for Telecommunication,” which controlled official news information agencies, newspapers, and one of the two most popular television channels, and Sheriff Holding, a business conglomerate with considerable influence in the Transnistrian “Supreme Soviet.” The Transnistrian “Supreme Soviet” passed a law restricting access of journalists to the institution’s plenary sessions.

Violence and Harassment: During the year civil society and media advocates raised concerns over intimidation and harassment of prominent investigative journalists.

In early January, journalist Mariana Rata was subjected to a preliminary legal investigation after she published an article about a former police commissioner in December 2016. The former official claimed that the journalist had violated his privacy rights by publishing personal data. Rata was summoned to the Prosecutor General’s Office and interrogated. Civil society representatives contended that the investigation constituted an abuse of the law and was a clear case of retaliation intended to deter other journalists from high-profile investigations. The Prosecutor General’s Office later suspended the investigation.

Censorship or Content Restriction: In many cases, journalists practiced self-censorship to avoid conflicts with the sponsors or owners of their media outlets. In Transnistria, journalists avoided criticizing separatist officials' goal of independence or their "foreign policy" to avoid official reprisals.

Journalists voiced concern that a personal data protection law restricted journalists' access to information.

Media NGOs criticized access restrictions that prevented them from fully covering public events. In July media NGOs complained photojournalist Constantin Grigorita was not allowed to attend a press conference by President Igor Dodon, although the journalist met all the accreditation requirements of the presidential administration and registered in advance for the event. On November 13, a court ruled that the president's office must provide official justification of its actions. On December 13, Freedom House criticized the Presidential Office's for preventing Gigorita from attending a series of public events despite court rulings affirming the right to access to public information.

In 2015 the ACC prohibited the retransmission of Russian channel Rossiya 24 on the country's territory after its monitoring report concluded that Rossiya 24 violated the law by misinforming and manipulating public opinion about events in Ukraine. Authorities punished several other channels--Prime, Television 7, RTR Moldova, and Ren TV Moldova--for rebroadcasting news and analytical programs from Russia that were described as manipulative and propagandistic. The ban of Rossiya 24 came after a six-month suspension of the channel in 2014 for the same reason.

Media NGOs and the ACC alleged that many major television channels showed strong bias in favor of certain candidates during the 2016 presidential election campaign. The ACC sanctioned several television channels that it charged violated audiovisual legislation and ethical norms during the campaign. Four channels--Publika TV, Focus TV, NTV Moldova, and Jurnal TV--were deprived of the right to broadcast advertising for 72 hours. Two additional channels--Prime TV and Ren TV Moldova--were fined the maximum level of 5,400 lei (\$270).

Libel/Slander Laws: Some newspapers practiced self-censorship and avoided controversial issues due to concerns that government officials and other public figures could use defamation laws to retaliate against critical news reports.

Internet Freedom

The government did not restrict or disrupt access to the internet or censor online content, and there were no credible reports that the government monitored private online communications without appropriate legal authority.

According to statistics published by the Moldovan Agency for Regulation in Electronic Communication and Information Technology, the number of mobile internet user accounts reached 4.43 million. The number of active internet users was 1.7 million.

In 2015 Transnistrian “president” Shevchuk issued a decree on combating extremism that empowered the Transnistrian “KGB” to request the “prosecutor’s office” to block internet content. Authorities would make such a determination following a review by a panel appointed by the “KGB.”

Academic Freedom and Cultural Events

There were no government restrictions on academic freedom or cultural events.

b. Freedoms of Peaceful Assembly and Association

The government placed some limits on freedoms of peaceful expression and association.

Freedom of Peaceful Assembly

The law provides for freedom of assembly, and the government generally respected this right, with some exceptions.

Opposition extra-parliamentary parties and NGOs held a protest May 15 following a vote to amend the electoral system. The protest organizers asserted the authorities “took illegal and disproportionate measures to hinder the arrival of protesters in Chisinau, particularly from the rural areas.” Opposition leaders alleged that law enforcement agencies intimidated local activists before the protest and installed a number of roadblocks on the roads to Chisinau on the day of the protest. There were media reports that several drivers transporting protesters were stopped by police or transportation regulators and sanctioned for “unusual illegalities.” In an appeal sent to diplomatic missions, a number of NGOs claimed

the authorities infringed upon the right to free movement and the right to peaceful assembly.

Freedom of Association

The constitution provides for freedom of association and states that citizens are free to form parties and other social and political organizations, and the government generally respected this right. The law prohibits organizations “engaged in fighting against political pluralism, the principles of the rule of law, or the sovereignty and independence or territorial integrity” of the country.

During the year, government officials and members of the parliamentary majority increasingly denigrated the role of civil society in the country, characterizing NGOs critical of government actions as “political actors” who require increased regulation.

In Transnistria, authorities severely restricted freedom of association. Separatist authorities granted the legal right of association only to persons they recognized as citizens of Transnistria. All nongovernmental activities had to be coordinated with local authorities; groups that did not comply faced harassment, including visits from security officials. Authorities strictly prohibited organizations favoring reintegration with the rest of Moldova.

The human rights NGO Promo-Lex, which suspended its activities in the Transnistrian region in 2015 following notification of a criminal case opened against it, did not renew attempts to enter the region.

c. Freedom of Religion

See the Department of State’s *International Religious Freedom Report* at www.state.gov/religiousfreedomreport/.

d. Freedom of Movement

The law provides for freedom of internal movement, foreign travel, emigration, and repatriation. The government generally respected these rights.

The government cooperated with the Office of the UN High Commissioner for Refugees (UNHCR) and other humanitarian organizations in providing protection

and assistance to internally displaced persons, refugees, returning refugees, asylum seekers, stateless persons, and other persons of concern.

The government repeatedly denied entry for Russian journalists, experts, and artists under various justifications, primarily when the individuals intended to visit the Transnistrian region.

A January decree by the Transnistrian leader adopted new migration mechanisms. According to Transnistrian authorities, the new law would “optimize the stay and registration of foreign citizens and stateless persons in Transnistria and improve migration processes.” Transnistrian authorities, however, maintained a travel notification mechanism required for all Moldovan and visiting foreign officials. There was at least one case of a Moldovan journalist being denied access to Transnistria in August.

Emigration and Repatriation: Although citizens generally may depart from and return to the country freely, there were some limitations on emigration. Before emigrating, the law requires individuals to settle all outstanding financial obligations with other persons or legal entities. The government did not strictly enforce this requirement. The law also provides that close relatives who are financially dependent on a potential emigrant must concur before the prospective emigrant may depart the country. Authorities did not enforce this law.

Protection of Refugees

Access to Asylum: The law provides for granting asylum or refugee status, and the government established a system for protecting refugees. Obtaining formal refugee status was slow and burdensome. Authorities issued refugees identity cards for an indefinite term; beneficiaries of humanitarian protection received identification documents valid for three years; and asylum seekers received temporary identification cards. UNHCR provided refugees logistical, housing, and financial support. A temporary accommodation center administered by the Bureau of Migration and Asylum was available for asylum seekers and was refurbished during the year. As of December, there were 151 refugees in the country. During the year 69 asylum seekers arrived, most of whom came from Syria, Russia, and Ukraine. The number of asylum seekers decreased during the year due to alternative relocation mechanisms adopted by the Ukrainian government.

Temporary Protection: The government provided humanitarian protection to individuals who may not qualify as refugees. As of December 1, there were 251 beneficiaries of humanitarian protection registered in the national asylum system.

Stateless Persons

There were approximately 2,700 stateless persons in the country, most of whom resided in Transnistria. The largest numbers of stateless persons were ethnic Ukrainians, Russians, Romanians, and Turks.

The law grants citizenship to persons who resided in the historical regions of Bessarabia, Northern Bucovina, the Herta region, and the territory of the Moldovan Autonomous Soviet Socialist Republic prior to 1940 as well as their descendants. The law includes procedures for the determination of statelessness.

Stateless persons and refugees may gain nationality through naturalization. The law allows a stateless person who has resided legally in the country for eight years to seek citizenship. The government issued residence permits for a period of up to one year to stateless persons temporarily residing in the country at a cost ranging from approximately 500 to 1,400 lei (\$25 to \$70), depending on the urgency of the permit. Trafficking victims received residence permits free of charge.

Section 3. Freedom to Participate in the Political Process

The law provides citizens the ability to choose their government in free and fair periodic elections held by secret ballot and based on universal and equal suffrage.

Elections and Political Participation

Recent Elections: In 2014 the country held parliamentary elections that met most OSCE, Council of Europe, and other international commitments, although local and international observers raised concerns about the inclusion and exclusion of specific political parties.

The country's first direct presidential elections in 20 years took place in October and November 2016. A run-off was required, as no candidate obtained more than 50 percent of the vote in the first round. According to international observers, the elections were conducted in a broadly fair and democratic way. Coverage of the electoral campaign by some media outlets, however, was not impartial. Observers also raised concerns about the lack of transparency in campaign financing. An

unspecified number of citizens abroad or from Transnistria were unable to vote because insufficient ballots were allocated to their polling stations. A Promo-Lex election observation mission reported multiple cases of organized transportation of voters to polling stations, cases of voters taking pictures of their ballots after voting, isolated cases of deficient sealing of ballot boxes, acts of violence and voter intimidation, an increased number of derogatory materials targeting the candidates, intense negative campaigning, and the active involvement of clergy in the electoral campaign.

The results of media monitoring by the OSCE Office for Democratic Institutions and Human Rights (ODIHR) indicated political bias by major broadcasters covering the 2016 presidential campaign. ODIHR stated that a failure to enforce the obligation to provide fair, balanced, and impartial campaign coverage compromised a level playing field for candidates. Candidates did not have equal access to media outlets that were controlled by politicians or their surrogates. There were numerous cases of abuse of administrative resources by parties holding elected office, including pressure on state employees and other voters during the collection of candidate support signatures and campaign activities.

Political Parties and Political Participation: Opposition parties reported intimidation and harassment of their members by local authorities, including threat of loss of employment.

In July parliament adopted a new electoral code, providing for the election of 50 seats on party lists and 51 from single-mandate districts. Civil society and opposition political parties criticized the district delineation process as biased toward certain political parties due to alleged gerrymandering, a lack of transparency, underrepresentation of the diaspora, and the questionable independence of the commission charged with shaping the districts.

Participation of Women and Minorities: No laws limit the ability of women and members of minorities to participate in the political process, and women and minorities did participate. The law provides that either gender must have a minimum of 40 percent of candidates on the party lists of candidates for parliamentary and local elections.

The new electoral code provides for a 10 percent financial supplement from the state budget for political parties to promote female candidates and establishes a 40 percent quota in single-mandate districts. The law applies a multiplier to the financial supplement given to parties for every winning female candidate in

districts. Electoral experts expressed concern that the new electoral code could dilute the positive impact of the 2016 equality law's 40 percent quota requirement.

The law provides for sanctions against political parties for publicly promoting discriminatory messages or stereotypes, for using discriminatory language in mass media, and for failing to meet the required gender quotas.

Voter education materials as well as campaign materials of the majority of candidates were available in the state language and in Russian. Although permitted, other minority languages were virtually absent from voter education and campaign activities.

Instances of gender stereotyping and sexist language were observed in the media during the 2016 campaign period, particularly before the runoff, in which one candidate was male and the other female.

Section 4. Corruption and Lack of Transparency in Government

Corruption remained the country's most serious problem. While the law provides criminal penalties for official corruption, the government failed to implement the law effectively, and officials frequently engaged in corrupt practices with impunity. There was widespread corruption within the judiciary and other state structures. The government made some progress in investigating corruption cases involving public officials and the judiciary, but these actions were mostly perceived as selective justice.

In May parliament passed the Integrity Law, which set up a broad framework to fight corruption by "mainstreaming" measures from various national legislative acts passed in 2016. It increased the National Anticorruption Center's powers to verify wealth and included language addressing "political integrity, public integrity, institutional integrity, and favoritism." The National Integrity Authority, which was meant to check assets, personal interests, and incompatibilities of officials, remained nonfunctional due to legislative gaps and delays in appointment of the body's leadership.

Corruption: The 2016 Transparency International *Corruption Perceptions Index* rated the country as more corrupt than in the previous four years. Authorities often avoided or ignored anticorruption laws. There was a widespread perception of public sector corruption linked to "state capture" (i.e., private interests significantly influencing a state's decision-making processes). Legal gaps impeded the National

Integrity Authority's ability to enforce financial disclosure requirements and check officials' assets and financial interests. Delays in finalizing the reform of this body compromised the fight against corruption. Additionally, the government's failure to take prompt action against persons responsible for overseeing banking sector security or who admitted a role in the theft of one billion dollars from the banking sector, discredited the government's stated intention to fight corruption. Despite the existence of anticorruption tools, their implementation within the judiciary was deficient. Nonmeritocratic promotion of judges and selective justice applied to political competitors compromised the independence of the judicial system.

The term "captured state" continued to be widely used by local and international experts to define the scope of corruption in the country. A study released during the year by Transparency International-Moldova showed how a narrow group of interests politicized the fight against corruption to exert control over the three branches of state power. The *2016 Global Corruption Barometer* released by Transparency International indicated an increase in perceptions that the influence of the wealthy over government decisions was extremely high. Individual households paid most bribes to workers in the health-care sector, police, and educational institutions. Businesses paid the most bribes in tax offices and in courts.

Unprecedented political "migration" and party defections among parliamentarians demonstrated the extent of corrupt influences in parliament and the buying of political support, with more than one-third of members of parliament no longer representing the party that elected them. The *2017 Nations in Transit* report indicated that local politicians changed parties presumably for money or possibly due to threats and intimidation. Since the 2015 local elections, hundreds of mayors and local council members have defected from their parties. Local officials complained that the central authorities denied state resources to opposition mayors and that law enforcement officials harassed opposition local officials.

The government announced that during 2016 the National Anticorruption Center initiated 858 criminal cases involving corruption and workplace abuse. A total of 187 cases involving 235 persons were sent to the courts, including cases against a judge, 48 Ministry of Internal Affairs employees (among whom five were border police officers), five criminal investigation officers, nine police officers, and three National Anticorruption Center officers. Of the 179 individuals sentenced in 2016, 19 were imprisoned and 15 received both a prison term and fines. Most corruption offenses involved public and private sector (720 cases), money laundering (32 cases), and other (106 cases). The center investigated judges, prosecutors, state

institution heads, health-care officials, mayors, bailiffs, police officers, lawyers, and other public officials.

In March authorities arrested Minister of Agriculture Eduard Grama on bribery charges involving illegally renting and selling state public lands. If found guilty, he could face a sentence of 15 years in prison; the case was pending at year's end. In April authorities detained Minister of Transportation Iurie Chirinciuc on passive corruption and influence peddling charges and later sentenced him to one year and four months in prison with a suspended sentence, fined him 35,000 lei (\$1,750), and banned him from holding public office for five years.

The Internal Protection and Anticorruption Division in the Ministry of Internal Affairs registered 24 cases of passive corruption and 17 cases of active corruption during the year. Most corruption offenses involved employees of the police inspectorate (17 cases), followed by ordinary citizens (16 cases), the emergency situations service (five cases), the border police (one case). The Anticorruption Division also reported 24 cases of influence peddling.

Financial Disclosure: A number of laws require financial disclosure by public officials, including state officials, judges, prosecutors, civil servants, and officials holding leadership positions. The National Integrity Authority, an independent body tasked with auditing income statements and monitoring conflicts of interest of public officials, has the power to apply sanctions. The law provides for the dismissal of and a ban on holding public office for officials who fail to declare their assets and the institutionalization of an integrity inspector with power to request seizure of illegally acquired assets. The law requires the heads of state enterprises and local councilors to submit income statements provides for an online system for wealth and interest statement submissions. By law, officials must make public income statements within 30 days of their appointment and before March 31 of each year for the duration of their term in office. The government enforced this requirement inconsistently.

The National Integrity Authority undertook no investigations of asset declarations as it remained nonfunctional, as the organization lacked senior leadership until December and had not hired the needed integrity inspectors by year's end.

Section 5. Governmental Attitude Regarding International and Nongovernmental Investigation of Alleged Abuses of Human Rights

A variety of domestic and international human rights groups generally operated without government restriction, investigating and publishing their findings on human rights cases. Government officials were somewhat cooperative and responsive to their views.

According to local and international experts, authorities in the Transnistrian region continued to monitor and restrict activities of human rights NGOs. There were credible reports that no human rights NGO in the region investigated serious human rights violations due to fear of repression and harassment from authorities.

Government Human Rights Bodies: The human rights ombudsman was fully operational. In April parliament adopted a new constitutional provision on the role and powers of the ombudsman. The amendment provides for the independence of the ombudsman from political influence and for his/her appointment to a seven-year, nonrenewable term. The ombudsman can only be recalled by a vote of two-thirds of parliament, cannot be involved in politics or be a party member, and is not legally responsible for opinions expressed while holding office. Attempts to influence the ombudsman's activity and the intentional refusal to address the ombudsman's appeals and recommendations are subject to legal punishment. The ombudsman examines claims of human rights violations, advises parliament and other state institutions on human rights problems, acts as a mediator, submits legislative initiatives to parliament, submits legislation to the Constitutional Court for review, and files human rights cases with courts. A children's ombudsman provides for the protection of children's rights without requiring the consent of parents or legal guardians and has authority to initiate legal proceedings.

Parliament also had a separate standing committee for human rights and interethnic relations.

Section 6. Discrimination, Societal Abuses, and Trafficking in Persons

Women

Rape and Domestic Violence: The law criminalizes rape or forcible sexual assault and establishes penalties for violations ranging from three years to life in prison. The law also criminalizes spousal rape.

Rape remained a problem, and there were no specific governmental rape prevention activities. During the first three months of the reporting year, the General Police Inspectorate registered 58 cases of rape.

A 2015 report by the Women's Law Center and the Center for Investigation and Consultation "SocioPolis," Men and Gender Equality in the Republic of Moldova, found that almost 20 percent of the country's men had had sex with a woman without her consent. Almost 25 percent had had sex with a woman who was too drunk to consent, and 18 percent admitted to marital rape. Approximately 5 percent admitted to participation in a gang rape.

A study released in March by the international NGO La Strada noted that the legal system in the country did not provide an effective remedy for victims of sexual abuse. According to the study, in many cases, rape was requalified as sexual intercourse with a person under the age of 16, which reduced the potential penalty, and victims' statements on the lack of consent were not taken into account. In one in three cases, law enforcement officers initiated criminal investigations for less serious offenses than the ones reported by the victims. In 90 percent of the cases, the victims were not present at the preliminary hearings or the first court hearing on the case. Victims were commonly forced to confront their attacker in court. Sexual violence was the least recognized and reported form of violence. Police reportedly used poor investigative techniques and often mishandled rape cases, further discouraging victim cooperation. NGOs reported that law enforcement agencies used mediation as means to dismiss rape cases, including forcing the victim to marry her rapist to ensure that he avoided prosecution. The majority of victims reported extremely long delays in their cases due to lengthy evidence-collecting procedures and prosecutions, while the need for numerous interrogations and confrontations with their rapist added to the trauma experienced by victims.

The law defines domestic violence as a criminal offense, provides for the punishment of perpetrators, defines mechanisms for obtaining restraining orders against abusive individuals, and extends protection to unmarried individuals and children of unmarried individuals. The maximum punishment for family violence offenses is 15 years' imprisonment. As of September, police initiated 1,583 criminal procedures in domestic violence cases. From March to December, the courts issued 799 protection orders. As of September, there were 3,859 family aggressors listed in the police register; 3,678 of the total were men; 181 were women.

The law permits excluding an abuser from lodging shared with the victim, regardless of who owns the property. According to amendments to the law on preventing and combating domestic violence that came into force in March, law enforcement officials may apply emergency restriction orders requested by

domestic violence victims. NGOs reported cases in which authorities issued conflicting protective orders, providing both the abuser and the victim with protection against the other and resulting in confusion in the courts.

The law provides for cooperation between government and civil society organizations, establishes victim protection as a human rights principle, and allows third parties to file complaints on behalf of victims. The NGO La Strada, for example, operated a hotline to report domestic violence, offered victims psychological and legal aid, and provided victims options for follow-up assistance. Access to such assistance remained difficult for some, however.

There was progress in building institutional capacity to protect women and children against domestic violence. The Ministry of Internal Affairs continued training for police officers handling domestic violence cases. According to various NGOs and UNICEF, the effectiveness of protective orders depended on the attitude of authorities. Reports continued that police officers were not diligent in ensuring either the protection of victims or proper execution of protective orders. The situation improved slightly, with authorities issuing an increased number of protective orders within 24 hours as required by law. NGOs expressed concern that authorities were insufficiently proactive in combating indifference toward domestic violence among police, prosecutors, and social workers. There were cases reported of authorities not issuing protective orders until a month after the alleged mistreatment. NGOs also maintained that authorities relied excessively on them to publicize remedies that were available and to assist victims in requesting protection.

The law does not provide criminal penalties for abuse resulting in “nonsignificant bodily harm” (e.g., slapping, hair pulling, pushes) that does not leave marks or result in work being missed. Under the law, abuse involving “nonsignificant” harm is punished administratively.

During the year the Women’s Law Center trained more than 200 judges, criminal investigators, and prosecutors on preventing and combating domestic violence. According to NGOs, after release from detention, abusers commonly returned to their homes and continued to abuse.

Sexual Harassment: Sexual harassment remained a common problem. The law provides criminal penalties for sexual harassment ranging from a fine to a maximum of three years’ imprisonment. The law prohibits sexual advances that affect a person’s dignity or create an unpleasant, hostile, degrading, or humiliating environment in a workplace or educational institution. According to NGOs, law

enforcement agencies steadily improved their handling of sexual harassment cases, addressing harassment of students by university professors and several instances of workplace harassment.

Coercion in Population Control: Women were often subject to forced abortions and contraception. Psychiatric institutions and social care homes registered isolated cases of forced abortions and of forced contraception. Estimates on maternal mortality and contraceptive prevalence are available at:

www.who.int/reproductivehealth/publications/monitoring/maternal-mortality-2015/en/.

Discrimination: Women and men enjoy the same legal status in family, labor, property, nationality, and inheritance law and in the judicial system. The law requires equal pay for equal work, which authorities generally respected. The law requires that women fill a minimum of 40 percent of decision-making positions in government and political offices; bans publicity that promotes discriminatory messages or stereotypes; prohibits sexist and discriminatory language and images in the media and advertising; spells out employers' responsibilities in ensuring a workplace free of discrimination and sexual harassment; and introduces two-week state-paid paternity leave.

In March the government approved the *Gender Equality Strategy for 2017-2021* to promote a complex approach to gender equality; improve institutional mechanisms for ensuring gender equality; combat stereotypes and promote nonviolent communication; promote gender equality in the security and defense sectors; and provide for gender-sensitive budgeting.

The UN Development Program (UNDP) National Human Development Report 2015/2016 released in June noted that, although women represented half the work force of the country, they were mostly employed in low-paying jobs. Women earned on average 12 percent less than men.

Children

Birth Registration: Persons may acquire citizenship through birth in the country, from citizen parents, or after adoption by citizens. Registration of birth is free of charge for all citizens. The lack of registration certificates for a number of children, especially in rural areas and in Romani families, remained a problem. Observers estimated that more than 1,000 children lacked identification documents.

Education: Primary education was free and compulsory until the ninth grade. Education of Romani children remained a problem; only half of Romani children attended school and only one in five attended preschool. According to Romani representatives, absenteeism and school dropout in Romani communities was due to poverty and fear of discrimination.

Child Abuse: Although the law prohibits child neglect and specific forms of abuse, such as forced begging, child abuse remained a problem. A special unit for minors and human rights in the Prosecutor General's Office was responsible for ensuring that particular attention and expertise was devoted to child abuse victims and child offenders.

The Prosecutor General's Office reported that 1,029 children were victims of various crimes in 2016, including 211 cases of sexual abuse and 75 cases of domestic violence. In the first six months of the year, the Prosecutor General's Office initiated 579 criminal cases in which 625 children were alleged to be victims of various crimes.

According to the Ministry of Education, in the first half of the 2016-17 academic year authorities registered 5,642 cases of violence against children, including physical violence (2,866 cases), psychological violence (1,306 cases), neglect (1,278 cases), child labor exploitation (167 cases) and sexual abuse (25 cases).

Early and Forced Marriage: The legal minimum age for marriage is 16 for women and 18 for men. There were no official statistics regarding child marriages.

Sexual Exploitation of Children: The Prosecutor General's Office is responsible for investigating and prosecuting child sexual abuse cases. Authorities punished commercial sex with minors as statutory rape. The minimum age for consensual sex is 16. The law prohibits the production, distribution, broadcasting, import, export, sale, exchange, use, or possession of child pornography, and violators face one to three years' imprisonment.

Child prostitution is punishable by three to seven years imprisonment. Child pornography is punishable by one to three years imprisonment and fines of 150,000 to 250,000 lei (\$7,500 to \$12,500). Engaging minors in illegal activities is punishable by up to seven years imprisonment or a fine of 27,500 to 52,500 lei (\$1,375 to \$2,625). Engaging minors in illicit use of drugs, medicines, or other

substances with intoxicating effects is punishable by up to six years in prison or a fine of 27,500 to 52,500 lei (\$1,375 to \$2,625).

Observers reported child prostitution and child sex tourism. According to UNICEF, about 10 percent of children in the country were exposed to sexual abuse, and prosecutors announced a high number of cases of sexual abuse of children.

In August officers of the Cybercrimes Unit of the National Investigation Inspectorate and the Prosecutor's Office to Combat Organized Crime and Special Cases broke up a child pornography ring, stopping the distribution of 7,000 files containing images of children between the ages of four and 12 who were sexually abused by male adults. If found guilty, the suspects face up to three years in prison.

During the year law enforcement agencies, in cooperation with civil society organizations, organized a number of events and movie screenings to educate the public on how social networks and the Internet are used to recruit and sexually exploit children. The international center La Strada operated a hotline and an online platform for children, their parents, and teachers to educate them on online safety.

Institutionalized Children: During the year there were 1,119 children in government residential institutions, including 476 children with mental disabilities, 377 orphans and children without parental care, and 266 children with sensory disabilities. Children in residential institutions were at greater risk of unemployment, sexual exploitation, trafficking, and suicide compared with their peers raised in families.

In 2016 the NGO La Strada and the Antiviolence Coalition of NGOs criticized the lack of government action in dealing with the problem of street children after a television report uncovered over 20 minors living in the ruins of an abandoned Chisinau hotel. Legal protection mechanisms for street children were not functional.

International Child Abductions: The country is a party to the 1980 Hague Convention on the Civil Aspects of International Child Abduction. See the Department of State's *Annual Report on International Parental Child Abduction* at travel.state.gov/content/childabduction/en/legal/compliance.html.

Anti-Semitism

The Jewish community numbered between 15,000 and 25,000 persons, including 2,000 living in Transnistria. The Jewish community reported two acts of vandalism during the year. In April, an unknown person set fire to plants and stray animals in the Jewish cemetery in Chisinau. In a second case, a monument to the victims of the Holocaust established in Orhei was damaged before the opening ceremony; an investigation of the incident continued as of year's end.

Anti-Semitic discourse and attitudes were present in recurrent comments and news items in some media outlets. Property restitution continued to be a problem for the Jewish community and there was no law to address it (see section 1.e., Property Restitution.)

In 2016 parliament endorsed the Elie Wiesel Commission's *Report on the Holocaust* and condemned attempts to deny or ignore the Holocaust and paid homage to its victims and survivors. In May the government approved an action plan for 2017-19 on Holocaust education and commemoration. The Jewish community reported limited government progress in fulfilling this plan.

Trafficking in Persons

See the Department of State's *Trafficking in Persons Report* at www.state.gov/j/tip/rls/tiprpt/.

Persons with Disabilities

The law prohibits discrimination against persons with physical, sensory, intellectual, and mental disabilities in employment, education, access to public facilities, health care, or the provision of other government services, but authorities rarely enforced the law. It prohibits construction companies from designing or constructing buildings without specific access for persons with disabilities and requires transportation companies to equip their vehicles to meet the needs of persons with disabilities. The law also requires that land, railroad, and air transportation authorities provide access for persons with disabilities and adapt public spaces and transportation to provide access for wheelchair users. The airport administration must provide an escort for persons with disabilities. Authorities implemented the provisions of the law only to a limited extent.

Human rights observers criticized the country's guardianship system. A person placed under guardianship loses all standing before the law and cannot engage in social and legal acts, such as marriage, voting, claiming social benefits, consenting to medication, or refusing medication.

Isolated cases of violence and abuse, including rape and forced abortion, were reported in segregated institutions for persons with mental disabilities that together house some 2,500 children and adults. Human rights NGOs noted that residential institutions posed high risks for physical abuse, involuntary confinement, forced medication, rape, and other types of abuse. Women were often subject to forced abortions and contraception. NGOs reported a high mortality rate in psychiatric institutions.

According to the Promo-Lex presidential election observation mission, in the 2016 presidential elections 36 percent of polling stations were not accessible for persons with mobility impairments and 33 percent lacked proper conditions for persons with vision disabilities.

Most schools were ill equipped to address the needs of children with disabilities. Some children with disabilities attended mainstream schools, while authorities placed others in boarding schools or they were home schooled.

In Transnistria, children with disabilities rarely attended school and lacked access to specialized resources.

While many newly built or reconstructed buildings were accessible, older buildings often were not. More than 70 percent of public institutions lacked access ramps for persons with disabilities. Persons with limited mobility complained about the lack of access to public transportation and public institutions as well as the shortage of designated parking places.

Although the law provides for equal employment opportunities and prohibits discrimination against persons with disabilities (with the exception of jobs requiring specific health standards), many employers either failed to accommodate or avoided employing such persons. Transnistrian legislation provides for protection of the rights of persons with disabilities in the areas of education, health care, and employment. Reliable information about the treatment of persons with disabilities in Transnistria was unavailable.

National/Racial/Ethnic Minorities

Despite a decrease in reported cases of discrimination, Roma continued to be one of the most vulnerable minority groups in the country and faced a higher risk of marginalization, under-representation in political decision-making, illiteracy, and social prejudice. Roma had lower levels of education, more limited access to health care, and higher rates of unemployment than the general population (see section 7.d.). Romani women were particularly vulnerable to social exclusion and discrimination.

Authorities lacked an effective mechanism to address vulnerable families whose children did not attend school.

Approximately 60 percent of Romani families lived in rural areas. Some Romani communities lacked running water, sanitation facilities, and heating. Other problems facing Roma included lack of emergency health-care services in secluded settlements, unfair or arbitrary treatment by health practitioners, lower rates of health insurance coverage, and discrimination in the job market. According to the most recent statistics, only 21 percent of Roma were actively employed.

Latin-script schools in Transnistria continued to be a matter of dispute between the Moldovan authorities and the de-facto Transnistrian authorities.

Acts of Violence, Discrimination, and Other Abuses Based on Sexual Orientation and Gender Identity

The law prohibits employment discrimination based on sexual orientation. Societal discrimination based on sexual orientation and gender identity continued. Gay men were often victims of discrimination, but verbal and physical abuse against lesbians was also reported. In most cases, police officers were reluctant to open cases against the perpetrators.

Genderdoc-M, reported multiple verbal and physical assaults against LGBTI individuals. Genderdoc-M reported that 12 cases of discrimination based on sexual orientation or gender identity were under examination at the ECHR, three of them filed during the year. Most cases involved complaints about hate speech by religious and political leaders. In May President Igor Dodon stated, “I am not the president of gays.” He reiterated that he was “categorically against the actions of the LGBTI community that clearly violate our traditional values and Orthodox religion. We have to maintain our morality and our traditional family.”

Civil society organizations reported that transgender individuals were unable to change identity documents during or following gender reassignment and experienced employment discrimination (see section 7.d.).

In May Genderdoc-M organized the 16th annual LGBTI festival under the slogan “No Fear,” culminating in a solidarity (pride) march on May 21. While dozens of police officers cordoned off the march route, they allowed protesters onto the second half of the route, blocking the march’s completion. A few anti-LGBTI demonstrators threw eggs at the demonstrators, and police chose to evacuate the marchers in buses.

While authorities allowed individuals to change their names (e.g., from a male to a female name), the government did not allow persons to change the gender listed on their identity cards or passports.

In Transnistria, consensual same-sex activity is illegal, and LGBTI persons were subjected to official as well as societal discrimination.

HIV and AIDS Social Stigma

Persons living with HIV continued to face societal and official discrimination. There were approximately 11,000 people living with HIV/AIDS, but only 4,500 were receiving antiretroviral treatment. A 2015 study on equality perceptions and attitudes by the Council to Prevent and Combat Discrimination and Ensure Equality and the Office of the UN High Commissioner for Human Rights reported that persons living with HIV/AIDS represented the second most stigmatized group in the country after LGBTI persons. According to the study, persons with HIV were mostly perceived negatively, labeled as “leading a disordered sexual life” and frequently associated with drug users.

The law prohibits hospitals and other health institutions from denying admission or access to health-care services or requesting additional fees from persons with HIV or suspected of being HIV-positive. Prison inmates with HIV/AIDS faced high levels of discrimination by both prison staff and other inmates.

Hospitals disclosed HIV status without consent to persons not entitled to have such information.

Section 7. Worker Rights

a. Freedom of Association and the Right to Collective Bargaining

The law provides workers the right to form and join independent unions, bargain collectively, and conduct legal strikes. The government generally respected these rights with limitations. The law prohibits antiunion discrimination but does not provide for the reinstatement of workers fired for union activity. The law does not allow government workers and workers in essential services, such as law enforcement, health-care providers, and public utility employees, to strike. The law prohibits strikes during natural disasters, epidemics, and pandemics as well as in times of state emergency. Authorities may impose compulsory arbitration at the request of one party to a dispute. There are no particular groups of workers excluded from or covered differently by relevant legal protections.

In September parliament amended 36 articles in the labor code, including new provisions requiring employers to consult the trade union within the organization prior to laying off employees who are trade union members; and abrogating provisions related to the legal effect of a collective labor contract after its termination.

A mechanism to monitor and enforce labor laws through the State Labor Inspectorate (SLI) in the Ministry of Health, Labor, and Social Protection and the Prosecutor General's Office exists, but failed to monitor and enforce the rights to collective bargaining and to organize effectively. The law does not provide effective sanctions for violations of freedom of association or stipulate penalties for violating trade union rights. Under the law, the deliberate failure to negotiate and amend collective agreements or the violation of the negotiated terms is punishable by a fine of 1,000 to 1,500 lei (\$50 to \$75). An employer's groundless refusal to sign a collective labor agreement is punishable by a fine of 2,000 to 2,500 lei (\$100 to \$125). The law mandates fines of 2,000 to 3,500 lei (\$100 to \$175) for violation of workers' rights to form or join trade unions.

The labor code requires the inspectorate to collaborate with other institutions, including business organizations/patronages and trade unions. The methods of cooperation are established through agreement between parties. The National Trade Union Confederation (NTUC) of Moldova registered 129 infringements of collective contracts' provisions, collective bargaining, and trade unions rights during the year. According to NTUC, private businesses and companies with foreign investments frequently opposed their employees' right to organize and bargain collectively. NTUC leadership believed that the inspectorate was affiliated with powerful business interests.

The NTUC regularly consulted employers and employees on the application of labor laws, negotiated employer compliance, and advanced worker rights. From January to June, NTUC visited 25,882 employees (including 22,652 trade union members) in the course of 283 workplace visits and documented 5,195 violations, including 4,113 health and safety standard infringements and 953 labor law infringements. NTUC submitted information about these violations to the SLI. In addition, the NTUC labor inspectorate conducted two joint activities with the SLI as requested by trade union members.

The government and employers generally respected freedom of association and the right to collective bargaining. Worker organizations were independent of the government, political parties, employers, or employers' associations. While there were no reports that the government, political parties, or employers interfered in the functioning of workers' organizations. Prosecutors may reject appeals by trade unions alleging antiunion behavior, and authorities did not punish alleged violations of the trade union law during the year. Workers exercised the right to strike by conducting legal strikes. Employees of the state-owned railroad company protested repeatedly against salary arrears that amounted to 130 million lei (\$6.5 million) by March. Employees in the education sector protested four times during the year requesting a salary increase. In September the government decided to index wages with 11.3 percent wage increase for education sector employees.

b. Prohibition of Forced or Compulsory Labor

The law prohibits forced or compulsory labor, with exceptions. The law and a government decision allow central and local authorities as well as military bodies to mobilize the adult population under certain conditions, such as in the event of a national disaster, and to employ such labor to develop the national economy. The government did not invoke this provision during the year. Penalties for persons who engage workers in forced labor range from two to 15 years' imprisonment and were sufficiently stringent to deter violations but were seldom imposed.

The government did not effectively enforce the law. Resources, inspections, and remediation for forced labor were generally inadequate. Men and women were subjected to labor trafficking to Russia, Turkey, Cyprus, and the United Arab Emirates. Internal trafficking occurred in all regions of the country, focused mostly on farms and begging in larger cities.

Internal trafficking for begging and labor exploitation was steadily on the rise. Official complicity in trafficking continued to be a significant problem that the government attempted to curb by prosecuting those involved. The deputy director of the Center for Combatting Trafficking in Persons and another officer were arrested in February for allegedly accepting a bribe in return for closing a trafficking case.

During the first eight months of the year, the SLI conducted 2,552 labor inspections and monitored 2,235 organizations, including 322 from the public sector. As a result, the SLI documented 21,039 violations of the labor code, including 14,343 violations of labor relations and 6,696 violations of workplace health and security, and sent to court 130 cases. In 1,942 cases, the employers remedied the problem. Labor inspectors issued 64 contravention notices, and 22 persons were reinstated in their legal labor relation rights.

Also see the Department of State's *Trafficking in Persons Report* at www.state.gov/j/tip/rls/tiprpt/.

c. Prohibition of Child Labor and Minimum Age for Employment

The minimum age for employment is 16. The law permits juveniles between the ages of 16 and 18 to work under special conditions, including shorter workdays (35 hours per week and no night, weekend, holiday, or overtime work.. With written permission from a parent or guardian, 15-year-old children may work. Work for children who are 15 or 16 should not exceed 24 hours per week. Children under 18 are not allowed to perform hazardous and dangerous activities in 30 industries, including construction, agriculture, food processing, and textiles. The law prohibits the worst forms of child labor and provides for three to 15 years' imprisonment for persons engaging children in such activities. Under aggravated circumstances, courts can increase the sentence to life imprisonment.

Authorities did not effectively enforce legal protections, and child labor remained a problem. Authorities were required to give advance notice before conducting child labor investigations, which undercut their enforcement ability. In August the ombudsman for children's rights declared that the number of children subject to labor exploitation had increased and that authorities lacked effective mechanisms to combat the phenomenon. In most cases, children were involved in agriculture, domestic service, construction, or were victims of trafficking in persons, child pornography, begging, and drug trafficking. The ombudsman added that the National Committee for the Elimination of Child Labor was inefficient.

Crimes involving the worst forms of child labor carried a punishment of six to 10 years' imprisonment and a fine of 100,000 to 175,000 lei (\$5,000 to \$8,750). Crimes committed by a group of offenders that cause serious bodily harm or death carry a prison term of seven to 15 years and fines of 125,000 to 200,000 lei (\$6,250 to \$10,000). Trafficking in children and involvement in child labor are punishable by 10 to 12 years' imprisonment and fines of 200,000 to 300,000 lei (\$10,000 to \$15,000). In cases with aggravated circumstances, the law provides for 15 years' imprisonment and a fine of 300,000 to 400,000 lei (\$15,000 to \$20,000). For repeat offenders, groups of offenders, or involvement of children under the age of 14, penalties may include life sentences and fines of 400,000 to 500,000 lei (\$20,000 to \$25,000).

Violation of child labor, health, and labor safety laws carries a fine of 6,000 to 7,500 lei (\$300 to \$375) for individuals, 12,500 to 17,500 lei (\$625 to \$875) for an official, and 20,000 to 24,000 lei (\$1,000-\$1,200) for legal entities. Subjecting minors to jobs posing a danger to life and health is punishable by a fine of 5,000 to 7,500 lei (\$250 to \$375) for individuals, 12,500 to 20,000 lei (\$625 to \$1,000) for an official, and 20,000 to 25,000 lei (\$1,000 to \$1,250) for legal entities.

According to government officials, penalties for crimes involving the worst forms of child labor were sufficient to deter violations.

Parents who owned or worked on farms often sent children to work in fields or to find other employment. Children, left behind by parents who had emigrated to EU countries, also worked on farms. According to government data, 24.3 percent of children between the ages of five and 14 and 4.6 percent of teenagers between the ages of 15 and 17 fell into the category of child laborers. The vast majority of child laborers worked in family businesses or on family farms.

Also see the Department of Labor's *Findings on the Worst Forms of Child Labor* at www.dol.gov/ilab/reports/child-labor/findings/.

d. Discrimination with Respect for Employment and Occupation

The law prohibits discrimination based on sex, age, race, color, nationality, religion, political opinion, social origin, residence, disability, HIV-positive status, and membership or activity in trade unions as well as other criteria unrelated to the professional qualities, such as sexual orientation. The law requires employers to provide for equal opportunity and treatment of employees without discrimination,

to apply the same criteria to assess each employee's work, and to provide equal conditions for men and women relating to work and family obligations. The law defines and prohibits both direct and indirect discrimination as well as the worst forms of discrimination, which include discrimination based on two or more protected grounds. The law also provides for a Council to Prevent and Combat Discrimination and Ensure Equality responsible for reviewing complaints of discrimination and making recommendations.

The law provides for fines at levels considered sufficient to deter violations.

Discrimination in employment and occupation occurred with respect to gender, disability, minority status, sexual orientation, gender identity, and HIV-positive status. NTUC reported frequent cases of employers denying employment to pregnant women, since such employment was associated with additional benefits payable after childbirth. University or college graduates were frequently denied employment because of an alleged lack of experience.

e. Acceptable Conditions of Work

There are separate minimum wages for the public and private sectors. According to NTUC, as of April , salary arrears were more than 178 million lei (\$9 million), including over 115 million lei (\$6 million) owed by the state companies to 10,903 employees; 55 million lei (\$2.8 million) owed by private companies to 4,946 employees; over 7.6 million lei (\$400,000) by municipal companies to 1,671 employees, and 117,300 lei (\$6,000) owed by public institutions to 152 employees.

The law sets the maximum workweek at 40 hours with overtime compensation; provides for at least one day off per week; and mandates paid annual leave of at least 28 calendar days (government holidays excluded). Different paid leave plans may be used in some sectors, such as education, health care, and public service. The law prohibits excessive compulsory overtime. Foreign and migrant workers have the same legal status as domestic workers.

The government sets occupational safety and health standards. According to labor law, workers can remove themselves from situations that endanger their health or safety without jeopardy to their employment.

The labor code requires work contracts for employment. Through August the SLI reported that 132 persons were employed without proper documents, including 21 women and one minor. There were no reports of work contracts in the agricultural

sector, where the central government did not have an effective mechanism to monitor compliance.

Government efforts to enforce requirements for minimum wage, work hours, and occupational health and safety standards in the formal sector but not in the informal sector, were limited and ineffective. The law requires the government to establish and monitor safety standards in the workplace; assigning those tasks and enforcement to the SLI. In August the government delegated the functions of safety and health standards enforcement to the Public Health National Agency under the Ministry of Health, Labor and Social Protection. During the first 10 months of the year, the SLI performed 3,049 health, safety, and labor relations/legislation inspections, 593 out of them were unannounced. The SLI had 10 regional offices in the biggest municipalities and cities in the country. Eighty-seven inspectors worked in territorial divisions, however, SLI representatives stated these were insufficient to ensure compliance. The office inspected 2,706 enterprises, institutions, and organizations, including 443 in the public sector. It documented 24,598 infringements, including 7,294 of health and safety standards and 17,374 of labor laws. The SLI sent 159 protocols of administrative offenses to the courts. Starting in November 2016, penalties for violations ranged from 5,000 to 24,000 lei (\$250 to \$1,200), but were insufficient to deter violations.

A thriving informal economy accounted for a significant portion of the country's economic activity. According to a 2016 study conducted by the National Anticorruption Center, the informal economy represented 30 percent of the country's gross national product. According to the International Labor Organization, 30.9 percent of the total employed population had an informal job and 68.7 percent of those jobs were in the agricultural sector. Workers in the informal economy did not have the same legal protections as employees in the formal sector. There were no government social programs targeting workers in the informal economy.

Poor economic conditions led enterprises to spend less on safety equipment and to pay insufficient attention to worker safety. During the first 10 months of the year, the SLI documented 357 work accidents and investigated 103 cases, including 21 that resulted in deaths and 27 that resulted in serious bodily injuries. Another 30 accidents remained under investigation, including 17 that resulted in deaths. In 2016 SLI inspectors investigated 112 of 449 reported accidents. Enterprise committees investigated the other cases. A large number of incidents occurred in transportation, storage, and communications (12 severe accidents and six deaths); processing industries (six severe accidents and six deaths); agriculture (four severe

accidents and three deaths); and trade (three severe accidents and three deaths). The most common causes for injuries and deaths involved falling from heights, impact or crushing by equipment, and accidents involving transportation units on public roads.